



EBOS – Paringa Pet Foods

MN-30020

Phase 1 Determination

Acquisition may be put into effect

2 July 2026

1. Determination and statement of reasons

Notified acquisition	Pet Care Distributors Pty Ltd, a subsidiary of EBOS Group Limited (EBOS), proposes to acquire 100% of the shares of Paringa Pet Foods Pty Ltd (Paringa Pet Foods) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, EBOS, is a marketer, wholesaler, and distributor of healthcare, medical, pharmaceutical products, and animal care brands. EBOS serves customers across Australia. EBOS' animal care portfolio includes pet food and pet treats marketed under various brands including Black Hawk, VitaPet, Yours Drooly and Next Generation Pet Foods. The target, Paringa Pet Foods, is an Australian-owned pet food manufacturer and supplier of fresh, frozen, and cooked pet food products. Its products are sold through supermarkets, pet specialty retailers and via a direct-to-consumer channel. Its proprietary brands include Regal and Paringa, alongside premium private/white label brands.
Overlap and relationship between the parties	EBOS and Paringa Pet Foods overlap in the manufacture and wholesale supply of pet food for cats and dogs.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The increase in market share resulting from the Acquisition is estimated to be low. • The merged firm would continue to face competition from multiple alternative manufacturers and wholesale suppliers of pet food for cats and dogs.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are

	dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**